

FUNDAMENTAL RIGHTS OF CITIZENS UNDER 1973 CONSTITUTION

Some of the *Fundamental rights* of citizens under 1973 constitution are following:

1. Article 9: “*Security of A person*”

No person shall be deprived of life and liberty save in accordance with law.

2. Article 15: “*Freedom of Movement*”

The citizens of Pakistan are free to move, settle and reside in any part of Pakistan.

3. Article 16: “*Freedom of Assembly*”

Every citizen shall have right to assemble peacefully and without arms, subject to any reasonable restrictions imposed by law in the interest of Public order.

4. Article 19: “*Freedom of Speech, etc.*”

Every citizen of Pakistan shall have right to freedom of speech and expression.

5. Article 23: “*Provision as to Property*”

Every citizen shall have right to acquire, hold and dispose of property in any part of Pakistan, subject to the constitution and any reasonable instructions imposed by the law in the public interest.

FACTORS LEADING TO THE CREATION OF PAKISTAN

INTRODUCTION:

The Muslims of the Sub-Continent had dominated for 1000 years which was intercepted by the arrival of British to the continent.

The following factors led the Muslims for the establishment of their own state, Pakistan.

1. Protection of Muslim Culture and Civilization:

The Muslim culture, civilization and literature were the living and proud symbols of identity as a separate nation. The British totally ignored the Muslims since 1857.

In order to protect their cultural identity they struggled for their separate homeland.

2. Two Nation Theory:

The entire freedom movement revolved around *Two Nation Theory* which became the basic demand for **Pakistan**.

It meant that the **Muslims** and the **Hindus** were different nations with their distinct culture, civilization, religion and social values.

3. Political Exploitation:

The British and Hindus had never been sincere and friendly to the Muslims. The Congress exploited the Muslim interests resulting the Muslims made their own political party and went for their final destiny "**Pakistan**".

4. Congress Ministries:

During the period of congress ministries, Hindus did worst possible injustice with Muslims. Urdu was replaced by Hindi and slaughtering cow was banned.

After this nothing was left for Muslims but to demand a separate homeland.

5. Enforcement of the sovereignty of Almighty Allah:

The Islamic state (*Pakistan*) is built on the concept of the **sovereignty of Almighty Allah**.

Quaid-e-Azam said: *“We did not demand Pakistan to acquire a piece of land, but we wanted a homeland where we could introduce Islamic principles”*.

GEO-POLITICAL IMPORTANCE AND STRATEGIC LOCATION OF PAKISTAN

INTRODUCTION:

Islamic Republic of Pakistan is located between latitude of 23.35° to 37.05° North and extends from longitude 60.50° to 77.50° East, covering an area of 796096 square kilometers. Its land location has great geo-political importance.

1. An adherent of the unity of Muslim Ummah:

Pakistan was created in the name of Islam and is known as the first ideological state in the world. Pakistan is very important in the Muslim world as it is the largest Muslim state.

It is linked to Muslim countries through land and sea routes thus not only its ideological background but its location makes it an adherent to the unity of Muslim Ummah.

2. Maintained Balance of Power in South Asia:

SAARC stands for South Asian Association for Regional Co-operations. 8 countries are members of SAARC which are Pakistan, India, Sri Lanka, Bangladesh, Bhutan, Maldives, Nepal and Afghanistan.

India dominates the region as it has good relations with other 6 countries excluding **Pakistan**. Pakistan is the only state which maintained the balance of power in South Asia because it is also a Nuclear power.

3. Strong Support to China:

Pakistan is connected with China in the North. The Karakoram highway connects China and Pakistan by land. This highway is an important trade route.

In 1965 war, when USA stopped Pakistan's aid, China was the only established country which supported Pakistan.

4. Pakistan's Strategic Significance in the War of Terror:

The terrorist attacks on US resulted into a global war against terrorism. United States had chosen Pakistan for logistics, intelligence report, bases for operations in Afghanistan. Pakistan proved to be pivotal for the United States in war against terrorism.

5. An obstacle to the expansion of communism:

In 1949 both the superpowers USSR and USA look towards South Asia. USA sent invitation to India and USSR sent invitation to Pakistan but Pakistan refused it because Pakistan came into existence on the basis of Islam and USSR was communist state.

Environmental agreements, Pakistan's approach to international environmental treaties

Environmental Agreement:

International environmental agreements (IEAs) are signed treaties that regulate or manage human impact on the environment in an effort to protect it.

Some agreements encompass a range of environmental protections, while others are extremely specific.

The [International Environmental Agreements Database Project](#) separates agreements into the following environmental categories:

1. **Nature**
2. **Species**
3. **Pollution and climate**
4. **Habitat and oceans**
5. **Freshwater resources**
6. **Energy, nuclear issues, and conflict**

Pakistan's approach to International environmental treaties:

Pakistan is signatory to various Multilateral Environmental Agreements (MEAs) and has ratified all of them. Consequently, it is mandatory for

the state to ensure the implementation of the agreements that have been endorsed.

Some of the signed agreements are discussed below:

1) Convention on Biological Diversity (CBD):

“Biological diversity” means the variability among living organisms from all sources. This include diversity within species, between species and of ecosystems.

The objectives of this Convention are the conservation of biological diversity, the sustainable use of its components and the fair and equitable sharing of the benefits of genetic resources.

Pakistan signed the CBD on 18th June 1992, and it was ratified on 18th December 1994.

2) Paris Agreement:

The Paris Agreement builds upon the Convention and for the first time brings all nations into a common cause to undertake ambitious efforts to combat climate change.

The Paris Agreement central aim is to keep the global temperature rise this century well below 2 degrees Celsius. Additionally, the agreement aims to strengthen the ability of countries to deal with the impacts of climate change.

Pakistan ratified the Paris Agreement on 11th Nov 2016.

Pakistan has also signed many more agreements:

Kyoto Protocol to UNFCCC, Minamata Convention on Mercury, Vienna Convention for the Protection of the Ozone Layer ...

Implementation:

The Pakistan Environmental Protection Act was enacted on 6th December 1997. The Act particularly focuses on **implementation** of the Environmental agreements.

Trade and Economic Treaties, implications of trade agreements

Trade Agreement:

Any contractual agreement between governments involving their trading relations is referred to as a trade agreement.

Trade and Economic Treaties – Pakistan:

Pakistan has free trade agreements with Sri Lanka, China, Malaysia, ... Pakistan is also a part of the South Asian Association for Regional Cooperation (SAARC) and has trade agreements with Iran, Indonesia, Turkey and Mauritius.

Some of the agreements are discussed below:

1) Trade & Investment Framework Agreement (TIFA) Between Pakistan and USA:

Some important points of the agreement are:

1. Desiring to enhance the bonds of friendship and spirit of cooperation between the two countries.
2. Desiring to promote further both countries' international trade and economic interrelationship.
3. Recognizing that foreign direct investment confers positive benefits on each Party.
4. Desiring to encourage and facilitate private sector contacts between the two countries.

Implications:

1. Better economic relationship between the two countries.
2. Both governments try to solve trade and investment-related issues and concerns.
3. High Labor standards and good regulatory practices.
4. Market access between the two countries.

2) Pak-China Free Trade Agreement in Services:

This agreement was signed in **2009**.

The following objectives were kept in view while negotiating the Agreement with China:

1. To integrate respective economics of Pakistan and China for mutual benefits.
2. To provide a predictable investment regime in Infrastructure, Computer & related Services, Educational Services etc.
3. To promote joint ventures to build the capacity of domestic service suppliers, transfer of technology and certain of new jobs in Pakistan.

Implications:

1. China has provided market access to Pakistan in 11 sectors and 133 sub-sectors.
2. China has allowed Pakistani investors to completely own their projects in China.
3. Pakistan has provided market access to China in 11 sectors and 107 sub-sectors.

4. Trade in services also complements Trade in Goods, as manufacturers of goods need quality services.

Pakistan has also signed many more trade agreements such as:

Pakistan-Tajikistan Transit Trade Agreement, Pakistan-Afghanistan Transit Trade Agreement, Pak-Sri Lanka Free Trade Agreement, ...

Pakistan's cultural diplomacy, role of cultural conventions and agreements

Cultural Diplomacy:

Cultural diplomacy refers to the use of cultural elements, such as arts, language, education, and heritage, to foster understanding and build relationships between countries.

Pakistan, like many other nations, engages in cultural diplomacy to promote its image, strengthen international ties, and facilitate people-to-people connections.

Some aspects of Pakistan's cultural diplomacy are discussed below:

1. Literature and Arts:

Pakistan showcases its rich literary and artistic traditions on the international stage. Pakistani authors, poets, and artists participate in global events.

2. Cultural Events and Festivals:

Pakistan organizes cultural events, festivals and celebrations both domestically and abroad. Participation in international festivals allows for cultural exchange.

3. Cultural Heritage Preservations:

Pakistan's historical landmarks, such as Mohenjo-Daro and Taxila, serve as windows to its ancient civilization and attract international interest.

4. Public Diplomacy:

Pakistan engages in public diplomacy through various media channels, including social media. Sharing cultural stories, traditions, and

achievements helps shape a positive image of the country and fosters global connections.

Role of Cultural Conventions and Agreements:

Cultural conventions and agreements play a crucial role in shaping the way societies function and interact. Here are some key aspects of the role of cultural conventions and agreements:

1. Social Order and Stability:

Cultural conventions provide a framework for social order. They help in maintaining stability within a society by promoting common norms and values.

2. Communication and Understanding:

Cultural agreements contribute to effective communication and understanding of a society. Shared symbols, language, and communication styles help people convey meaning and interpret messages within a cultural context.

3. Traditions and Rituals:

Conventions and agreements often give rise to traditions and rituals that are passed down through generations. These cultural practices connect people across time.

4. Change and Adaption:

While cultural conventions provide stability, they are not static. They can evolve over time as societies change and adapt to new circumstances.

Pakistan is also a part of numerous Conventions and Agreements, namely:

[Protection of Cultural Property in the Event of Armed Conflict,](#)

[Agreement on the Importance of Educational, Scientific and Cultural Materials,](#) ...